

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION

FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: Jan 16, 2014 R#070509
 Annual Fee \$ Prorated Fee \$
 Basic Fee: \$
 Add'l Dispensing Room \$
 Fee: \$
 Transfer Fee: \$ 100.00
 Total License Fee \$ 100.00
 Collected \$
 Publishing Fee Collect: \$ 100.00

Required Attachments Received: Yes ☒

Advertising Dates(4): Jan 10, 17, 24, 31, 2014

Hearing Date: Feb. 1, 10, 2014

Local Licensing Number: 39

For the license term: upon issuance
 Month Day Year

Through: March 31, 2014
 Month Day Year

A copy must be immediately forwarded to:

State of Wyoming Liquor Division
 1520 E 5th Street
 Cheyenne WY 82002-0110

Formerly Held by: Spiritworks Inc

Applicant: Mingo Malt Inc

Trade Name (dba): Mingo

Premise Address: 618 Spiritworks Ave.

Cheyenne WY 82009 Laramie
 City State Zip County

Mailing Address: P.O. Box 4083

Cheyenne WY 82003
 City State Zip

Business Telephone Number: 307 632-9922

Fax Number: 307 632-9922

E-Mail Address: dogrady1@pmi.com

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR

- ☐ NEW
☐ TRANSFER LOCATION
☒ TRANSFER OWNERSHIP

FILING IN (CHOOSE ONLY ONE)

- ☒ CITY OF Cheyenne
☐ COUNTY OF

FILING AS (CHOOSE ONLY ONE)

- ☐ INDIVIDUAL ☐ LLC
☐ PARTNERSHIP ☐ LLP
☒ CORPORATION
☐ LTD PARTNERSHIP
☐ ASSOCIATION
☐ ORGANIZATION

TYPE OF LICENSE OR PERMIT

- (CHOOSE ONLY ONE)
☒ RETAIL LIQUOR LICENSE
☐ on-premise only
☐ off-premise only
☒ combination on/off premise
☐ RESTAURANT LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT
☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB
☐ MICROBREWERY
☐ WINERY
☐ BAR AND GRILL

- ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)

To Assist the Liquor Division with scheduling inspections:

DO YOU OPERATE?

- ☒ FULL TIME (e.g. Jan through Dec)

- ☐ SEASONAL/PART-TIME

(specify months of operation)

from Jan to Dec

DAYS OF WEEK (e.g. Mon through Sat)

Mon through Sat

HOURS OF OPERATION (e.g. 10a - 2a)

10-10

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If Winery or Microbrewery, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)

18' by 30' Room on North Side of Building

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

Lot 3 less 75.4 sq ft W/2 of block 1, Meadowbrook Park(B)

2. Do you W.S. 12-4-103 (a) (iii):

- (1) **OWN** the building in which sales room is located?
 (2) **LEASE** the building in which sales room is located?

- ☐ YES (own)
☒ YES (lease)

(A) **DATE** lease expires April 15, 2017 located on page 2 paragraph 2 of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page 5 paragraph 12 of lease.

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b)
 If "YES", explain: ☐ YES ☒ NO

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application?
 W.S. 12-4-407(a) W.S. 12-4-413(a) ☐ YES ☐ NO
 (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license?
 W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☐ NO
 (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is:
 (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
 (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
 (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is:
 (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
 (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.
If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years In Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
John F O'Grady	12-12-44	1802 Sundance	307-331-1838	12-27-13	51%	YES ☐ NO ☒	YES ☐ NO ☒
Debra V O'Grady	12-12-44	1802 Sundance	307-331-1838	12-27-13	49%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

COUNTY OF Laramie SS.

Before Me, Theresa Brennan
John F. O'Grady and (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Laramie County, State of Wyoming, personally appeared

John F. O'Grady and Debora V. O'Grady
(Insert Names) name he/she being first duly sworn

(Seal) by me upon his oath, says that the facts alleged in the foregoing instrument are true.



1. [Signature]
2. [Signature]

My Commission expires: Nov. 14th, 2014

Witness my hand and official seal:

Theresa Brennan
(Notary Public or other officer authorized to administer oaths)

Title Notary Public

Dated: January 6th 2014

REQUIRED ATTACHMENTS:

- Attach any lease agreements W.S. 12-4-103 (a) (iii).
- If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- Include a drawing of the dispensing room W.S. 12-5-201 (a).
- Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

I have been a successful business owner for many years. I heard that Mingles was for sale and became interested. My wife is a teacher for Laramie County School District #1 and is established in Cheyenne. We look forward to moving forward with this enterprise and hope to become contributing members of the Cheyenne business community.

John + Deb

John F. O'Grady

Debora V. O'Grady

Debora V. O'Grady

1/6/2014

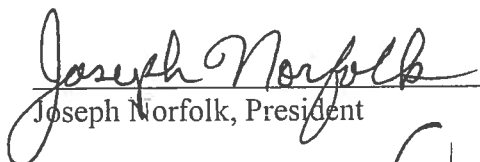
ASSIGNMENT OF LIQUOR LICENSE
WYO. STAT. § 12-4-601(b)

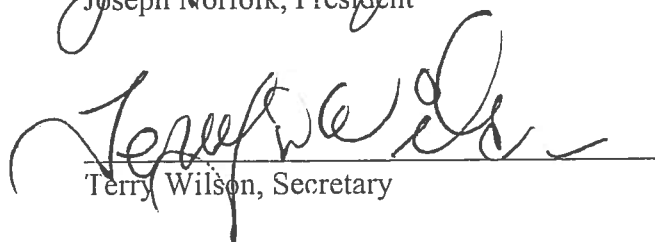
ASSIGNMENT dated this 3rd day of January, 2014, by Stillwater, Inc. ("Assignor"), the licensee of City of Cheyenne Retail Liquor License #39, to Minglemill, Inc., a Wyoming corporation ("Assignee").

Pursuant to the requirements of Wyo. Stat. § 12-4-601(b), Assignor hereby assigns ownership of City of Cheyenne Retail Liquor License #39 to Assignee, effective as of the 3rd day of January, 2014.

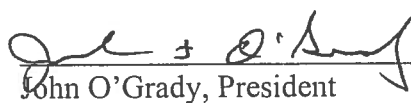
Assignee hereby accepts this Assignment and agrees to perform each and all of the obligations of the Assignor regarding City of Cheyenne Retail Liquor License #39.

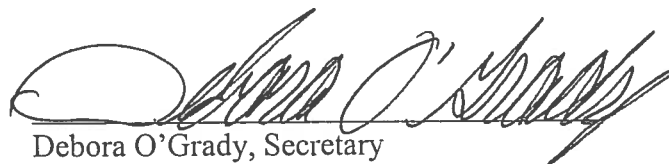
STILLWATER, INC., Assignor,
By:


Joseph Norfolk, President


Terry Wilson, Secretary

MINGLEMILL, INC., Assignee,
By:


John O'Grady, President


Debora O'Grady, Secretary

STATE OF WYOMING
Office of the Secretary of State

I, MAX MAXFIELD, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF INCORPORATION

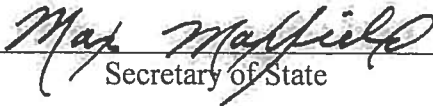
Minglemill, Inc.

Accordingly, the undersigned, by virtue of the authority vested in me by the law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **27th** day of **December, 2013**.



Filed Date: 12/27/2013


Secretary of State

By: _____ Whitney Harmon

Financial Statement for Liquor License Applicants

Applicant:

Mingemill, Inc

Date:

11.6.2017

Assets

Current Assets

Cash
Investments
Inventory
Prepaid Expenses
Other Current Assets

\$ 30,000
\$ 90,000
\$ 65,000
\$ _____
\$ _____
\$ 185,000

TOTAL CURRENT ASSETS

Fixed Assets

Land
Buildings
Leasehold Improvements
Furniture & Fixtures
Other Fixed Assets

\$ 0
\$ 0
\$ _____
\$ 30,000
\$ NA
\$ 30,000

TOTAL FIXED ASSETS

Less- Accumulated Depreciation

\$ _____

NET FIXED ASSETS

\$ _____

TOTAL ASSETS (LINE1)

\$ 245,000

Liabilities

Current Liabilities

Accounts Payable
Note Payable
Accrued Expenses (Interest, taxes, wages, etc.)
Installment Loans Payable
Other Current Liabilities

\$ 0
\$ 255,000
\$ _____
\$ _____
\$ 0

TOTAL CURRENT LIABILITIES (Line 2)

\$ 255,000

Capital

Capital

Sole Proprietor

\$ _____

Corporation

Capital Stock
Treasury Stock
Retained Earnings

\$ 345,000
\$ _____
\$ _____

Partnership

Name of Partner

Capital

\$ _____
\$ _____
\$ _____
\$ _____

TOTAL CAPITAL (LINE 3)

\$ 345,000

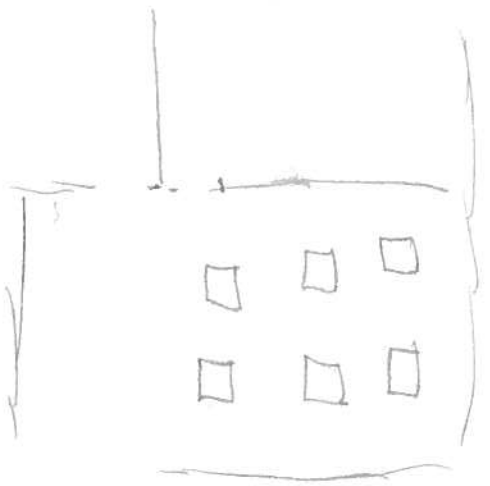
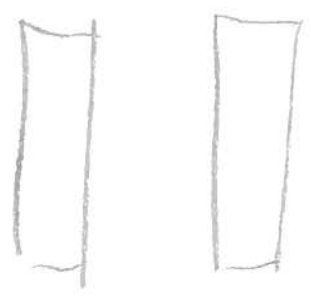
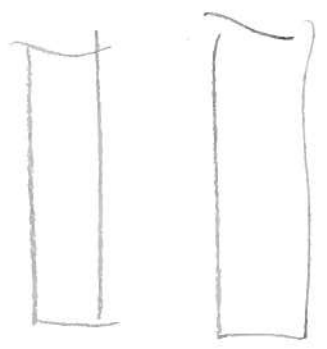
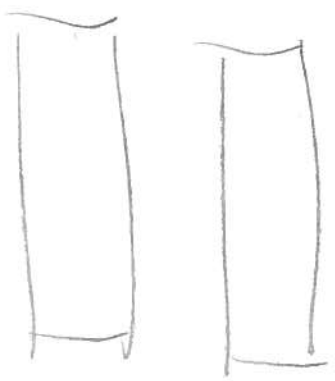
TOTAL LIABILITIES & CAPITAL

(Line 2 = Line 3) Must equal line 1

\$ 245,000

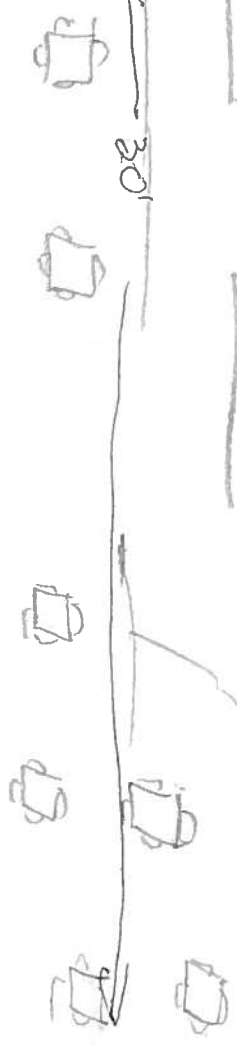
Package Liquor

Pool Tables



18'

30'



Bar

Entrance



COMMERCIAL BUILDING LEASE

THIS COMMERCIAL BUILDING LEASE AGREEMENT, ("Lease"), effective as of the 1st day of January, 2014, between Stillwater, L.L.C., a Wyoming limited liability company, ("Lessor"), and Minglemill, Inc., a Wyoming corporation, ("Lessee").

WHEREAS Stillwater, Inc., as Seller, and Lessee, as Purchaser, are parties to that certain Asset Purchase Agreement, (the "Agreement"), with an effective date of January 1, 2014, regarding certain Assets, goodwill, Liquor License and Inventory used by Stillwater, Inc. in the operation of Mingles Lounge and Mingles Package Liquor Store businesses, (the "Assets");

WHEREAS Stillwater, Inc. has conducted its business under the name of Mingles Lounge and Mingles Package Liquor Store from the premises at 1618 Stillwater Avenue, Cheyenne, Wyoming, pursuant to a lease between Stillwater, Inc., a Lessee, and Stillwater, L.L.C., as Lessor; and

WHEREAS, the Agreement provides that Minglemill, Inc., a Wyoming corporation, shall enter into a Commercial Lease Agreement with Stillwater, L.L.C. and conduct its business with such Assets from the Premises.

NOW THEREFORE, by and for their mutual covenants and agreements herein contained, the parties agree as follows:

1. AGREEMENT. Lessor shall lease to Lessee and Lessee shall lease from Lessor, the building situated at 1618 Stillwater Avenue, Cheyenne, Wyoming, and the land thereunder only, more particularly described as:

Lot Three (3), Block Four (4), Meadowbrook Park Subdivision, situated in the North one-half (N1/2) of Section Twenty-Nine (§29), Township Fourteen North (Twsp.14N), Range Sixty-Six West (R66W) of the Sixth Principal Meridian (6th P.M.), Laramie County, Wyoming, LESS that parcel described as:

Beginning at the northwest corner of said Lot 3, thence southerly along the west line of Lot 3 on an azimuth of 180°15'32", 130 feet to a point; thence easterly on an azimuth of 90°15'32", 0.58 feet to a point; thence northerly on an azimuth of 00°15'32", 130.00 feet to a point on the north line of Lot 3; thence westerly along the north line of Lot 3 on an azimuth of 270°15'32" to the point of beginning; and, the westerly one-half of Lot 4, Block 4, Meadowbrooke Park Subdivision, more particularly described as follows: beginning at the northwest corner of said Lot 4, thence easterly along the north line of Lot 4 on an azimuth of 90°15'32", 50.00 feet to a point; thence southerly on an azimuth of 180°15'32", 299.35 feet to a point on the south line of Lot 4; thence westerly on an azimuth of 287°31'33" along the south line of Lot 4, 52.36 feet to the southwest

corner of Lot 4; thence northerly along the west line of Lot 4 on an azimuth of 00°15'32", 283.81 feet to the point of beginning.

together with all appurtenances, (the "Premises").

2. TERM. The Rent Commencement Date of this Lease shall be the 1st day of January, 2014, and shall continue until the 15th day of April, 2017, ("Initial Term"), unless earlier terminated by the parties hereto as provided for herein.

3. OPTIONS TO RENEW. Lessor grants to Lessee an option to renew this Lease for an additional three (3) year term, ("First Renewal Term"). To be eligible to exercise this First Renewal option, Lessees must be in full compliance with all terms and conditions of this Lease. To exercise this option, Lessees must provide written notice to Lessor at the address set forth below, no later than ninety (90) days prior to the Expiration Date of the Initial Term of its desire to renew the Lease for the First Renewal Term. Rental for the First Renewal Term shall be negotiated by the parties however the increase shall not exceed

more that the Rent charged during the Initial Term and, if they cannot agree to such amounts, the Lease shall terminate on the Expiration Date of the Initial Term. Should the parties agree to such amounts, they shall execute a written Amendment to this Lease setting for the terms of the First Renewal Term.

Lessor further grants to Lessee an option to renew this Lease for an additional four (4) year term, ("Second Renewal Term"). To be eligible to exercise this Second Renewal option, Lessees must be in full compliance with all terms and conditions of this Lease. To exercise this option, Lessees must provide written notice to Lessor at the address set forth below, no later than ninety (90) days prior to the Expiration Date of the First Renewal Term of its desire to renew the Lease for the Second Renewal Term. Rental for the Second Renewal Term shall be negotiated by the parties, however the increase shall not exceed more that the Rent charged during the First Renewal Term and, if they cannot agree to such amounts, the Lease shall terminate on the Expiration Date of the First Initial Term. Should the parties agree to such amounts, they shall execute a written Amendment to this Lease setting for the terms of the Second Renewal Term.

4. RENT. During the Initial Term, Lessee shall pay as base rent hereunder, on or before the fifth (5th) day of each month of such term the amount of 1 month. Lessor shall provide to Lessee the bank name and account number to which such Rent payments are to be deposited by Lessee.

5. LESSEE'S ADDITIONAL OBLIGATIONS. In addition to the payment of Rent set forth above, Lessee shall pay, as a condition of its performance hereunder, the following:

A. Business Operations Insurance. Lessor shall maintain the business operations coverage, including liquor sales, property damage and contents insurance presently in

effect during the term of this Lease. Upon presentation of an invoice for the premiums for such insurance, Lessee shall pay such amount to Lessor. Failure of Lessee to pay such amount within twenty (20) days following Lessee's receipt of such invoice shall constitute a material default of this Lease. All such insurance policies shall list Lessor and Lessee as named insureds. Lessor shall provide Lessee with copies of all such policies and all paid premium invoices. All insurance carried by Lessor shall be in favor of the Lessor and Lessee as their respective interests appears. Lessor shall provide a copy of such policy to Lessee at or before Closing and shall notify the carrier of the Lessee's leasehold interest in the Premises.

B. Premises Liability Insurance. Lessee shall pay, upon presentation by Lessor of an invoice therefore, all premiums for casualty insurance coverage on the Premises during the term of this Lease. Lessor shall provide a copy of such policy to Lessee at or before Closing and shall notify the carrier of the Lessee's leasehold interest in the Premises.

C. Property Taxes. Lessee shall pay upon presentation of an invoice therefore, the annual property tax assessed on the Premises.

D. Maintenance and Repairs. Lessee shall pay all maintenance and repairs required to maintain the premises and contents in good repair and in at least the condition delivered. Lessee shall be responsible for the repair and maintenance of all mechanical and electrical systems including the heating and air conditioning systems and all structural systems. Lessee shall be liable for and shall repair any damage to the building and glass windows. Lessee shall be responsible for the cleaning of windows and other janitorial services and maintenance of the building and demised premises.

E. Alterations. Lessee shall take good care of the premises. Lessee shall not make or cause any structural changes to be made to the Premises without the prior, express and written consent of Lessor, which shall not be unreasonably withheld. Lessee may make such other alterations, improvements or changes to the Premises without approval by Lessor, however, all such alterations, improvements and/or changes shall be at the expense of Lessee and shall become the property of the Lessor and remain on the Premises upon termination of this Lease. Any damage or injury done to the Premises by Lessee or any person who may be in or on the Premises with the consent of Lessee shall be the responsibility of the Lessee. Lessee shall, at the termination of this Lease, surrender the Premises to Lessor in as good condition and repair as reasonable and proper use of the Premises will permit. Lessee hereby holds Lessor harmless from any labor or material liens that may be filed against the Premises due to Lessee's failure to pay for any such improvements. Lessee shall immediately cause the removal of any such lien and shall indemnify Lessor from any damages or costs, including attorney's fees Lessor may incur as a result of such lien filing.

F. Utilities. All applications for utility services shall be made in the name of the Lessee only. Lessee shall pay for all utilities consumed in the Premises to include, but not limited to sewer, water, gas, electricity and telephone services during the term hereof and any

renewals of such term. In the event Lessor is required to make any such payments, Lessee shall repay such amounts paid by Lessor upon demand.

G. Sales Tax. Lessee shall pay, in a timely and complete manner, all sales taxes, use taxes and excise taxes attributable to the business it shall operate in the Premises. By its execution of this Lease, Lessee grants to Lessor the right to seek and receive information from all governmental entities, including the Wyoming Department of Revenue and any divisions thereof, regarding Lessee's compliance with this requirement and further provides its consent and direction to any such governmental entities to provide such information to Lessor, thereby waiving any confidentiality regarding such information to such extent only.

6. LESSOR'S OBLIGATIONS. Lessor shall, during the term hereof:

A. Parking Lot Repaving. Within twelve (12) months following the Rent Commencement Date, Lessor, at its expense, shall contract for and complete the resurfacing and repaving of the parking lot on the Premises.

B. Maintenance and Repairs. Lessor shall be responsible for all costs of maintaining the HVAC units and equipment and the roof in insurable condition.

7. DEFAULT; CROSS DEFAULT. Upon Lessee's failure to pay a base rental payment required by this Lease on a timely basis or upon Lessee's default of the Asset Purchase Agreement, Lessor shall have the right to terminate this Lease, however Lessor, in order to declare a default based upon Lessee's failure to pay rental payments required by this Lease or the Asset Purchase Agreement, shall first send written notice by certified mail or other provable means of service of such failure by certified mail to Lessee at the address set forth below and shall permit Lessee fifteen (15) calendar days after Lessee's receipt of such notice within which to fully correct and cure such failure.

In order to declare a default based upon Lessee's failure to pay any additional payment or to perform any other obligation required by this Lease on a timely basis, Lessor shall have the right to terminate this lease agreement, however Lessor, in order to declare a default based upon any such failure, shall first send written notice of such failure by certified mail or other provable means of service to Lessee at the address set forth below and shall permit Lessee thirty (30) calendar days after Lessee's receipt of such notice within which to fully correct and cure such failure.

In the event that Lessee fails to completely cure and correct any such failure within the time period allowed, Lessee shall be in default and Lessor may, at Lessor's election, provide to Lessee written notice of termination of this Lease. Upon receipt of such notice, Lessee shall immediately vacate the premises and return all keys and Lessor's property in Lessee's possession to Lessor. Lessee shall remove their or its personal property to Lessor within five (5) days following Lessor's notice of termination. Any property of Lessee not removed shall be considered to have been abandoned by Lessee.

8. USE. Lessee may only use the demised premises for a bar, lounge, game parlor, food service and package liquor store. Lessee shall not use the demised premises, or any part of the demised premises, or allow them to be used for any purpose other than those set forth in this Lease Agreement or as otherwise allowed by Lessor in writing. Lessee shall not permit on the demised premises any act, sale or storage prohibited under standard forms of fire insurance policies, nor use the premises for any such purpose. In addition, no use shall be made or be permitted to be made that shall result in waste or improper, unlawful or objectionable use. Lessee shall comply with all governmental regulations and statutes affecting the demised premises either now or in the future. Lessee shall not keep or have on the leased premises any article or thing of a dangerous inflammable or explosive character that might unreasonably increase the danger of fire on the leased premises or that any responsible insurance company might be considered hazardous or extrahazardous. Lessee agrees it shall, at its expense, perform all repairs and complete all work and supply all items required to obtain all applicable permits, certificates and other approvals from all governmental entities that regulate the types of businesses Lessee shall operate from and within the premises.

9. HOLD HARMLESS/INDEMNIFICATION. Lessee waives all claims against Lessor for damages to goods or for injuries to persons on or about the demised premises from any cause arising at any time after January 1, 2014. Lessee hereby indemnifies and holds Lessor harmless on account of any damage or injury to any person, or to the goods of any person, arising from Lessee's use of the demised premises or use by Lessee's business invitees, employees, agents or guests, or arising from Lessee's failure to keep the demised premises in good condition as provided in this Lease Agreement. Lessee agrees to pay for all damage to the Premises, as well as all damage or injury suffered by the occupants of the Premises caused by Lessee's misuse or neglect of the Premises.

10. ACCEPTANCE OF CONDITION. Lessee has inspected the Premises, and acknowledges its present condition. Lessor makes no warranties, express or implied, regarding the condition of the Premises. Lessee is taking the Premises in its AS IS/WHERE IS condition.

11. ATTORNEY'S FEES. In the event that suit is brought or action taken to enforce of this Lease, the prevailing party shall, in addition to any other damages or award granted to the prevailing party, be entitled to an award of its attorney's fees, costs and expenses incurred in enforcing this Lease, with or without suit.

12. LIQUOR APPROVAL. Lessor acknowledges and consents to the use of the Premises for the sale of alcoholic beverages by Lessee.

13. NOTICES. All notices, consents, waivers or other communication required to be given by the parties hereto, to be effective, shall be sent certified mail, return receipt requested, postage prepaid, or other provable means of service to the address specified below (or to the address which a party may otherwise specify to the other party in accordance herewith):

IF TO LESSOR:
Stillwater, L.L.C.
c/o Joseph Norfolk
Managing Member
P.O. Box 418
Guernsey, WY 82214

IF TO LESSEE:
Minglemill, Inc.
c/o John O'Grady, President
1806 Sundance Lane
Cheyenne, WY 82009

14. LIQUOR LICENSE TRANSFER CONTINGENCY. This Lease Agreement, and the duties and obligations of the parties hereto, are contingent upon the approval by the Cheyenne City Council of the Application for transfer of Liquor License #39 from Stillwater, Inc. to Lessee pursuant to the Asset Purchase Agreement of even date with this Agreement. In the event of default of this Lease by Lessee, Lessor shall apply to the Governing Body of the City of Cheyenne for the transfer of such Liquor License from Lessee to Lessor. Lessee shall not transfer or encumber the Liquor License during the term of this Lease.

15. ASSIGNMENT. Lessee shall not assign this Lease, or sublet or grant any concession or a license to use the premises or any part thereof without the express written consent of Lessor. An assignment, subletting, concession, or license granted by Lessee without Lessor's prior written consent or an assignment or subletting by operation of law, shall be void and, at Lessor's option, shall terminate this Lease.

16. SUBORDINATION. This Lease and Lessee's leasehold interest hereunder are and shall be subject, subordinate, and inferior to any liens or encumbrances now or hereafter placed on the demises premises by Lessor, all advances are made under any such liens or encumbrances, the interest payable on any such liens or encumbrances, and any and all renewals or extensions of such liens and encumbrances.

17. BROKERAGE DISCLOSURE. Lessor is represented in this transaction by Coldwell Banker The Property Exchange, Cheyenne, Wyoming, and shall pay the commission due to such broker. Lessee represents that it is not represented by a broker or agent in this transaction.

18. HOLDING OVER. If Lessee holds possession of the Premises after the expiration of an Initial or Renewal term of this Lease, Lessee shall become a tenant from a month-to-month on the terms specified in this Lease except that the base monthly rent shall be an amount equal to 150% of the rental amount applicable to such term. Lessee shall continue to be a month-to-month tenant until the tenancy shall be terminated by Lessor, or until Lessee has given to Lessor a written notice at least thirty (30) days prior to the date of termination of the monthly tenancy of Lessee's intention to terminate the tenancy.

19. RIGHT OF FIRST REFUSAL. Lessor grants to Lessee a right of first refusal to purchase the real property and appurtenances during the term hereof. In the event that Lessor receives an offer to purchase the property from a third person, before Lessor may accept such offer, it shall first notify Lessee of the terms of such offer and allow Lessee twenty (20) days

19. RIGHT OF FIRST REFUSAL. Lessor grants to Lessee a right of first refusal to purchase the real property and appurtenances during the term hereof. In the event that Lessor receives an offer to purchase the property from a third person, before Lessor may accept such offer, it shall first notify Lessee of the terms of such offer and allow Lessee twenty (20) days within which to make an offer to purchase containing equal or better terms than the first offer, as determined by Lessor. Any such offer must provide that Lessee shall close such purchase and sale transaction within thirty (30) days following acceptance by Lessee, or such other time period as the parties may agree.

20. PERSONAL GUARANTEES. John O'Grady and Debora O'Grady each individually guaranty the performance of the Lessee's obligations set forth herein as if they were the individual Lessees.

21. BINDING EFFECT. This Agreement shall be binding upon and inure to the benefit of the respective parties hereto, their heirs, successors, representatives and assigns.

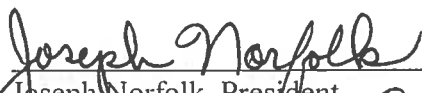
22. GOVERNING LAW; VENUE. This agreement shall be construed according to the laws of the State of Wyoming. Any action to enforce this Agreement shall be brought in a court of competent jurisdiction in Laramie County, Wyoming.

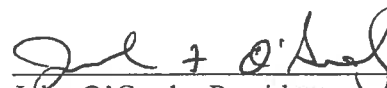
23. ENTIRE AGREEMENT. This Agreement sets forth the entire understanding of the parties; there are no oral representations relied upon by any party hereto, which are not specifically set forth herein; and this Agreement may be modified only in writing, executed by the necessary parties hereto.

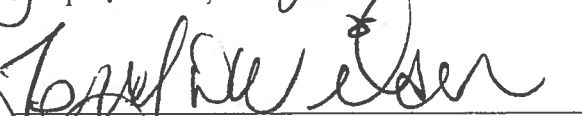
IN WITNESS WHEREOF, the parties have executed this Lease at Cheyenne, Wyoming, on the 3rd day of January, 2014.

STILLWATER, INC.,
By:

MINGLEMILL, INC.,
By:

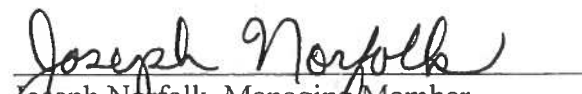

Joseph Norfolk, President


John O'Grady, President


Terry Wilson, Secretary


Debora O'Grady, Secretary

STILLWATER, L.L.C.,
By:


Joseph Norfolk, Managing Member